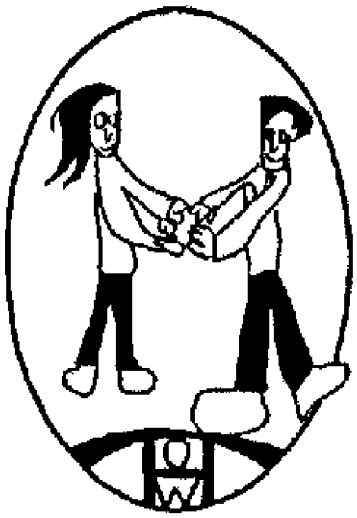
Howbridge Infant School



Exclusions Policy

February 2026

Exclusions

The school will follow guidance on the use of exclusion as set out in DfE statutory guidance "**Exclusion from maintained schools, Academies and pupil referral units in England"** Updated version August 2024.
This guidance relates to:

- The Education Act 2002, as amended by the Education Act 2011
- The School Discipline (Pupil Exclusions and Reviews) (England) Regulations 2012
- The Education and Inspections Act 2006
- The Education (Provision of Full-Time Education for Excluded Pupils) (England) Regulations 2007, as amended by the Education (Provisions of Full-Time Education for Excluded Pupils) (England) (Amendment) Regulations 2014.

"Educational exclusion extends far wider than what happens in schools; it is not an education based problem alone. The underlying causes of challenging behaviour and disengagement from education are often rooted in the family environment. There are risk factors that exist in the lives of many pupils which appear to impact predominantly on their cognitive development, behavioural, emotional and social development and on their mental health, well-being and educational attainment. It is critically important to look behind their behaviour and focus instead on their unmet needs."

"We argue that pupils should be supported to the greatest extent possible to stay within mainstream schools. Whilst many schools exhaust all possibilities before regretfully administering a permanent exclusion, this is not always the case. Some schools are failing to comply with their legal obligations in respect of official exclusions, are carrying out unofficial illegal exclusions, or are otherwise failing to provide an acceptable level of pastoral care and education. In doing so, they are also failing to comply with their child protection and safeguarding obligations in many cases."
(From- *No Excuses: A review of educational exclusion. The Centre for Social Justice)*

A decision to exclude a pupil will be taken by the Headteacher (or in her absence the Acting Headteacher).

Responsibility of the Headteacher

The responsibility of the Headteacher is clearly outlined in the latest DfE guidance. Headteachers must be able to demonstrate that any exclusion has been clearly thought through and is used as a last resort.

Reasons for exclusion

Exclusions will be for disciplinary reasons only. The behaviour policy sets out what the school rules are.
A decision to exclude a pupil permanently should only be taken:

- in response to a serious breach, or persistent breaches, of the school's behaviour policy.

- where allowing the pupil to remain in school would seriously harm the education or welfare of the pupil or others in the school.

A pupil can be permanently excluded for a one-off first 'serious breach' offence as defined in the behaviour policy.
Behaviour outside the school can be a reason for exclusion, but this should be in line with the school's behaviour policy. Commonly, this will include behaviour on school trips, behaviour when in school uniform or on the way to and from school and behaviour which may bring the school into disrepute.

The decision to exclude a pupil must be lawful, reasonable and fair. Schools have a statutory duty not to discriminate against pupils on the basis of protected characteristics, such as disability or race. Schools should give particular consideration to the fair treatment of pupils from groups who are vulnerable to exclusion.

If the parents of an excluded pupil do not speak or have a good understanding of English, the school will contact the LA to arrange for documentation to be translated into the mother tongue and make every effort to arrange for an interpreter to be present at any meetings involving the parent.

Under the Equality Act 2010, schools must not discriminate against, harass or victimise pupils because of their: sex; race; disability; religion or belief; sexual orientation; because of a pregnancy/maternity; or because of a gender reassignment. For disabled children, this includes a duty to make reasonable adjustments to policies and practices. Under the Equality Act the school will endeavour to:

- Eliminate discrimination and other conduct that is prohibited by the Equality Act.
- Advance equality of opportunity between people who share a protected characteristic and people who do not share it.
- Foster good relations across all characteristics – between people who share a protected characteristic and people who do not share it.

These duties will be taken into account when deciding whether to exclude a pupil.

The exclusion process is used to give a clear warning to the child and their family that the behaviour is unacceptable and must change if the child is to remain in school.

<u>Duty to Arrange Education for Excluded Pupils</u> (see also DfE guidance paras 45-51)
The school will make sure work is provided and marked for the first 5 days of any exclusion. If a pupil is fixed term excluded for more than 5 days the school is responsible for their full time education from the 6th day. If a pupil is permanently excluded the local authority becomes responsible for the full time education from the 6th day for pupils.

Duty to inform governing body and Local Authority (see also DfE Guidance paras 40-44)

The Headteacher will, without delay, notify the governing body and the Local Authority of:

- a permanent exclusion (including where a fixed period exclusion is made permanent);
- exclusions which would result in the pupil being excluded for more than five school days (or more than ten lunchtimes) in a term
- exclusions which would result in the pupil missing a public examination or national curriculum test.

For all other exclusions the Headteacher must notify the governing body once a term and the Local Authority through the school's usual recording systems. Notifications must include the reasons for the exclusion and the duration of any fixed period exclusion.

FIXED TERM EXCLUSION

The regulations allow the Headteacher to exclude a pupil for one or more fixed periods not exceeding **45 school days in any one school year**.

The school's obligation to provide education continues while the pupil is on roll, and must be met during a fixed term exclusion. In all cases of fixed term exclusion, work should be set and marked.

A fixed term exclusion could be between 1 and 5 days.

A fixed period exclusion does not have to be for a continuous period. In exceptional cases, usually where further evidence has come to light, a fixed period of exclusion may be extended or converted to a permanent exclusion. In such cases the Headteacher must write again to the parents explaining the reasons for the change and providing any additional information required.

During the exclusion the school will consider what educational and pastoral arrangements will best help with the pupil's reintegration into school at the end of the exclusion.

Behaviour Leading To Fixed Term Exclusion

- Serious actual or threatened violence against another pupil, member of staff or visitor
- Emotional, physical or sexual abuse of another child, member of staff or visitor
- Endangering lives – putting staff or children at risk

- Acting in a manner likely to cause danger to themselves or other children, members of staff or visitors.
- Acts of vandalism.
- Non co-operation with a member of staff.
- Any other situation where the Headteacher considers a fixed-term exclusion appropriate.

LUNCHTIME EXCLUSION

Pupils whose behaviour at lunchtime is disruptive may be excluded from the school premises for the duration of the lunchtime period.

A lunchtime exclusion is a fixed period exclusion (equivalent to one half school day).
Therefore, parents have the same right to be given information and to appeal.

Arrangements should be made for pupils who are entitled to free school meals. A packed lunch will be provided.

The parent may voluntarily take their children off the premises at lunchtime if they are working with the school and see it is in the child's best interests. This would **not** count as an exclusion.

Unofficial exclusions

All exclusions must follow the correct procedure and be recorded as exclusions. It is unlawful to send a child home to 'cool off' even if parents or carers agree.
Lunchtimes will be treated as a half day exclusion for each lunchtime.

PERMANENT EXCLUSION

A decision to exclude a child **permanently** is a serious one. It will usually be the final step in a process for dealing with disciplinary offences following a wide range of other strategies, which have been tried without success. It is an acknowledgement by the school that it has exhausted all available strategies for dealing with the child and should normally be used as a last resort.

There will, however, be exceptional circumstances where, in the Headteacher's judgement, it is appropriate to permanently exclude a child for a first or 'one-off' offence. These might include:

a) Serious or actual or threatened violence against another pupil or member of staff.

b) Sexual abuse or assault.
c) Supplying an illegal drug.
d) Carrying an offensive weapon.
e) A serious breach or persistent breaches of the school's behaviour policy.
f) Where allowing the pupil to remain in school would seriously harm the education or welfare of the pupil or others in the school.

The school will consider whether or not to inform the police where such a criminal offence has taken place. Other agencies such as social workers may be involved.

Behaviour Leading To Permanent Exclusion

Persistent bad behaviour as outlined under fixed term exclusion which has not been modified by fixed term exclusions.

Behaviour listed above.

PROCEDURES FOR REVIEW AND APPEAL

The Pupil Discipline Exclusions Committee of the Governing Body has established Terms of Reference to establish arrangements to review all permanent exclusions and all fixed term exclusions that would lead to a pupil being excluded for over 15 days in a school term or missing a public examination.

Further guidance will be followed from the DfE "Exclusion from maintained schools, Academies and pupil referral units in England" Updated September 2017.

INFORMING PARENTS ABOUT THE EXCLUSION

When a child is excluded the parents will be notified immediately by telephone, followed by a letter or email (if consent has been given) within one school day.

The letter or email (if consent has been given) of notification will state:

- the reasons for the exclusion;
- for a fixed period exclusion the precise period of the exclusion;
- for a permanent exclusion, the fact that it is a permanent exclusion;
- the parent's right to make representations about the exclusion to the governing body and how the pupil may be involved in this;
- how any representations should be made;

- where there is a legal requirement for the governing body to consider the exclusion, that parents have a right to attend a meeting, be represented at this meeting (at their own expense) and to bring a friend;
- that for the first five school days of an exclusion (or until the start date of any alternative provision where this is earlier) parents are legally required to ensure that their child is not present in a public place during school hours without reasonable justification and that parents may be given a fixed penalty notice or prosecuted if they fail to do so.

If alternative provision is being arranged then the following information will be included with this notice where it can be reasonably found out within the timescale:

- the start date for any provision of full-time education that has been arranged for the pupil during the exclusion;
- the start and finish times of any such provision, including the times for morning and afternoon session where relevant;
- the address at which the provision will take place;
- any information required by the pupil to identify the person he/she should report to on the first day.

Letters may need to be translated into other languages, where parents' first language is not English.

Letters should also mention:

a) The latest date by which the Governing Body must meet to consider the circumstances in which the pupil was excluded (except where the exclusion is for a total of not more than 5 school days in any one term, and would not result in the pupil missing a public examination)

b) The parent's right to see and have a copy of his or her child's school record upon written request to the school

c) In the case of a **fixed term** exclusion, the date and time when the pupil should return to school (in the case of **lunchtime** exclusion, the number of lunchtimes for which the pupil is being excluded) and if applicable, the arrangements for the child to receive free school meals

d) If the exclusion is **permanent** the date it takes effect and any relevant previous history

e) The arrangements made for enabling the pupil to continue his or her education, including the setting and marking of work. It is the parent's responsibility to ensure that work sent home is completed and returned to school

f) Relevant sources of free impartial information including:

- A link to the statutory guidance on exclusions: **exclusions guidance**
- A link to the Coram Children's Legal Centre: **www.childrenslegalcentre.com**

Parental Co-operation

If a parent does not comply with an exclusion, for example by sending the excluded child to school, or by refusing to collect, or arrange collection of, him or her at lunchtime, the school must have due regard for the pupil's safety in deciding what action to take. An exclusion should not be enforced if doing so may put the safety of the pupil at risk. If efforts to resolve the issue with the parents are unsuccessful the school should consider whether to contact the Education Welfare Service and seek the advice of the LA about available legal remedies.

Reintegration Meetings

A reintegration meeting between the home and school will be arranged at the end of a fixed term exclusion. The purpose of this meeting will be to draw up a contract between the family and the school with the intention of avoiding further exclusion.

INFORMING THE GOVERNING BODY AND THE LA

Within one school day the Headteacher will inform the Governing Body's Discipline Committee and the LA of:

a) permanent exclusions (including where a fixed period exclusion is made permanent);
b) exclusions which will result in the pupil being excluded for more than five school days or ten lunchtimes in any one term;
c) exclusions which will result in the pupil missing a public examination or national curriculum test.

Fixed period exclusions totaling five or fewer school days or ten or fewer lunchtimes or half days, in any one term will be reported to the Governing Body and LA once a term.

Exclusion reports will include:

a) the pupil's name
b) the length of the exclusion
c) the reason for exclusion
d) the pupil's age, gender and ethnicity
e) whether the pupil has an EHCP (or a statement prior to an EHCP) for SEN, is being assessed for such an EHCP or has SEN Support
f) whether the pupil is in Local Authority care.

Marking Attendance Registers Following Exclusion

Where pupils are excluded for a fixed term period and no alternative provision is made for them to continue their education whilst excluded, they should be marked absent in the attendance register using code E.

ALTERNATIVES TO EXCLUSION

a) **Restorative Justice**

This enables an offender to redress the harm that has been done to a 'victim' and enables all parties with a stake in the outcome to participate fully in the process.

b) **Mediation**

Mediation through a third party, usually a trained mediator, is another approach that may lead to a satisfactory outcome, particularly where there has been conflict between two parties e.g. a pupil and a teacher or two pupils. This could be through a SEBD Specialist Teacher Team member; School Counsellor/ Advisor or Family Support Worker.

c) **Internal Exclusion (seclusion)**

Internal exclusion can be used to defuse situations that occur in school that require a pupil to be removed from class but may not require removal from the school premises. The internal exclusion could be to a designated area within the school, with appropriate support and supervision, or to another class on a temporary basis, and may continue during break periods. Internal exclusion should be for the shortest time possible and should be subject to review.

d) **Managed Move**

A managed move to another school enables the pupil to have a fresh start in a new school. The Headteacher may ask another Headteacher to admit the pupil. This will only be done with the full knowledge and co-operation of all the parties involved, including the parents, governors and the LA, and in circumstances where it is in the best interests of the pupil concerned.

Part time/reduced timetables

DfE guidance is that part time timetables should not be used as a solution to behavioural problems and/or as a sanction.

In some cases, if a child has been out of school, unwell, or excluded, a part time timetable may be used as a short term measure towards achieving full reintegration, building back up to full time hours as long as parents/carers, Local Authority staff and other agencies where involved are all in agreement and a written plan is put into place. This would be most appropriately done through a Pastoral Support Plan (PSP).

A part time timetable will not be treated as a long term solution. Any PSP or other agreement will have a time limit by which point the pupil is expected to attend full-time or be provided with alternative provision.

If in the circumstance the last resort means that there is an agreement to a part-time timetable then the school has agreed to a pupil being absent from school for part of the week or day and therefore will record it as authorised absence.

A reduced timetable means by agreement with the pupil, parent/carer and school, the number of hours spent in education are reduced for a time limited period probably of no more than six weeks.

Once a reduced timetable has been agreed, the pupil will be marked as an authorised absence for the part of the day they are not in school. The school has a duty of care for all pupils who are on the school roll. The school will ensure that when a pupil is not expected to attend, there is a written agreement with parents or alternative education providers about who is carrying out the duty of safeguarding for each session.

We will endeavour to ensure children are not discriminated against on the basis of their SEN and/or disability, including those with BESD or other factors as outlined above and in the Equality Act 2010.

This policy is written in conjunction with Exclusion from maintained schools, academies and pupil referral units in England (Statutory guidance for those with legal responsibilities in relation to exclusions) September 2017

Review Date: Spring 2027